

United States District Court for the Northern District of West Virginia

Asterglen Freight Software, Inc. v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC

Certified District-Court Docket

Civil Action No. SYN-NDWV-25-CV-0618 District ECF No. 65 — Certified March 20, 2026

This certified docket reports the civil entries maintained by the Clerk from commencement through March 20, 2026. Asterglen Freight Software, Inc. is the plaintiff and counterclaim defendant. Copper Kestrel Logistics, LLC is a defendant and counterclaim plaintiff. Meridian Silt Holdings, LLC is a defendant. The action was assigned within the Northern District of West Virginia and remains open.

ECF	Date	Docket text
1	2025-03-03	Complaint filed by Asterglen, asserting Count I against Copper and Count II against Meridian; jury demand noted. Attachment 1 is the Pilot License and Schedules dated April 15, 2024.
2	2025-03-03	Case Assignment and Initial Scheduling Order entered.
3	2025-03-03	Summons issued for Copper.
4	2025-03-03	Summons issued for Meridian.
5	2025-03-10	Waiver of service returned for Copper.
6	2025-03-10	Waiver of service returned for Meridian.
7	2025-03-12	Clerk's notice confirms responsive pleadings due April 7, 2025.

The Complaint seeks \$480,000 on the contract count and \$360,000 on the interference count. Opening the docket and issuing process did not adjudicate either claim. The initial order required preservation and set the framework for a Rule 26(f) report after appearances.

Pleadings and initial case management

ECF	Date	Docket text
8	2025-04-07	Copper Answer, Affirmative Defenses, and Counterclaim filed. Attachments 1 and 2 reproduce the June 3 proposed change order and June 10 written conditions. Copper seeks \$120,000.
9	2025-04-07	Meridian Answer and Affirmative Defenses filed. Attachment 1 is Meridian's June 14 integration statement of work and milestone table.
10	2025-04-21	Asterglen Answer to Copper's Counterclaim filed.
11	2025-04-22	Copper corporate disclosure statement filed.
12	2025-04-22	Meridian corporate disclosure statement filed.
13	2025-05-05	Copper motion for leave to amend its counterclaim; consent position stated.
14	2025-05-12	Copper First Amended Counterclaim filed, maintaining a \$120,000 demand on its cure, performance, and offset theory.
15	2025-05-13	Order recognizing the amended counterclaim as the operative counterclaim.
16	2025-05-20	Stipulation and order setting Asterglen's responsive pleading date.
17	2025-05-27	Asterglen Answer to First Amended Counterclaim filed.
18	2025-06-02	Notices of appearance and electronic-service contacts entered for all parties.
19	2025-06-05	Order directing counsel to complete the Rule 26(f) conference.
20	2025-06-09	Parties' notice that the Rule 26(f) conference occurred.
21	2025-06-12	Joint request to file the discovery report on June 16, 2025.
22	2025-06-16	Joint Rule 26(f) Report and Discovery Plan filed.

At the close of the pleadings reflected on this page, both complaint counts and Copper's amended counterclaim were contested. No entry dismissed Meridian or resolved the counterclaim.

Discovery administration and testimony

ECF	Date	Docket text
23	2025-06-23	Scheduling order entered, setting discovery and dispositive-motion dates.
24	2025-06-30	Notices of initial-disclosure exchange filed.
25	2025-07-07	Joint motion for protective treatment of designated commercial information.
26	2025-07-10	Agreed protective order entered; no merits findings made.
27	2025-07-18	Electronically stored information protocol approved.
28	2025-07-25	Asterglen notice of service of written discovery.
29	2025-08-01	Copper notice of service of written discovery.
30	2025-08-08	Meridian notice of service of written discovery.
31	2025-08-14	Copper notice of service of interrogatory and request-for-admission responses.
32	2025-08-21	Asterglen notice of service of discovery responses.
33	2025-09-02	Joint deposition schedule filed.
34	2025-09-12	Notice recording completion of Asterglen's Rule 30(b)(6) deposition.
35	2025-09-19	Notice recording completion of Copper's operations deposition.
36	2025-09-26	Notice recording completion of Meridian's engineer deposition.
37	2025-10-03	Joint discovery-status report filed.
38	2025-10-10	Stipulation concerning authenticity of identified business records filed.
39	2025-10-17	Joint report states fact discovery complete, subject to use of preserved testimony and exhibits.
40	2025-10-24	Order confirms November 3 dispositive-motion deadline.
41	2025-10-31	Copper notice of intent to seek partial summary judgment on Count I.

Discovery concerned the license, added terminals, 41 identifiers, July communications, audit, cure feasibility, continued work, and claimed losses. Administrative entries did not determine whose account was correct.

Partial-summary-judgment submissions

ECF	Date	Docket text
42	2025-11-03	Copper Motion for Partial Summary Judgment filed, directed only to Count I.
43	2025-11-03	Copper memorandum in support filed. Attachments 1 through 5 are the provisioning ledger, July 8 call and email chain, July 18 audit, July 22–25 termination and cure-status chain, and Asterglen Rule 30(b)(6) excerpts.
44	2025-11-03	Copper Statement of Undisputed Material Facts filed.
45	2025-11-04	Clerk's notice confirms the response date under the governing schedule.
46	2025-11-14	Asterglen consent motion for a limited response extension filed.
47	2025-11-17	Order grants the extension and sets November 24, 2025 as the response date.
48	2025-11-21	Asterglen notice of anticipated combined opposition and supporting exhibits.
49	2025-11-24	Asterglen Opposition to Partial Summary Judgment filed. Attachments 1 through 5 are Copper's authenticated discovery responses, Copper operations deposition excerpts, Meridian engineer deposition excerpts, cure-feasibility declaration and tests, and damages or offset declaration and ledger.
50	2025-11-24	Meridian Response Regarding Shared Record and Count II filed.
51	2025-11-25	Clerk's notice confirms receipt of the opposition materials and preserves existing exhibit restrictions.
52	2025-12-05	Copper Reply Supporting Partial Summary Judgment filed.

The motion record addressed the 15-calendar-day cure clause, the immediate July 22 termination and \$480,000 demand, the feasibility of reducing identifiers within three business days, and factual overlap with the unresolved claims.

Merits ruling, Rule 54(b) papers, and partial judgment

ECF	Date	Docket text
53	2025-12-08	Notice states the partial-summary-judgment motion is fully briefed.
54	2026-01-05	Court notice states that the motion will be resolved on the written record.
55	2026-01-12	Memorandum Opinion and Order grants Copper summary judgment on Count I only and dismisses Count I with prejudice. Count II and Copper's amended counterclaim remain pending; the order notes overlapping facts and possible setoff.
56	2026-01-13	Joint status report proposes continued administration of Count II and the amended counterclaim.
57	2026-01-20	Asterglen Rule 54(b) Motion and Memorandum filed, requesting an express determination and separate judgment.
58	2026-01-30	Defendants' Opposition to Rule 54(b) Motion filed.
59	2026-02-02	Asterglen Reply Supporting Rule 54(b) Motion filed.
60	2026-02-04	Order grants the Rule 54(b) motion and directs the Clerk to enter separate judgment on Count I. The order contains no express determination that there is no just reason for delay.
61	2026-02-04	Partial Judgment entered in favor of Copper and against Asterglen on Count I; Count I dismissed with prejudice. The judgment supplies no additional findings or determination and leaves the other claims pending.

The February 4 order is a bare grant and direction. The separate judgment records the Count I disposition but does not add the express determination absent from the order. Neither entry closes the civil action as a whole.

Notice of appeal and record transmission

ECF	Date	Docket text
62	2026-03-03	Asterglen Notice of Appeal filed, designating ECF Nos. 55, 60, and 61 and naming the United States Court of Appeals for the Fourth Circuit.
63	2026-03-05	District clerk transmits the Notice of Appeal and civil docket information; Fourth Circuit No. SYN-CA4-26-CV-4102 assigned.
64	2026-03-16	Asterglen No-Transcript Statement and Record Designation filed. The filing states that the summary-judgment and Rule 54(b) motions were decided on written submissions.
65	2026-03-20	Certified District-Court Docket entered and record status certified through this date.

The March 3 notice was filed before the ordinary March 6 deadline calculated from the February 4 separate judgment, if February 4 is treated as the operative entry date for a qualifying appeal. That timing statement does not resolve whether the papers satisfy Rule 54(b) or establish appellate finality. The district clerk's transmission is administrative and expresses no view on the Fourth Circuit's jurisdiction.

No transcript is included because no oral hearing occurred on the dispositive or certification motions. The written record includes pleadings, contract and change-order materials, discovery and testimony, summary-judgment filings, the Rule 54(b) filings, orders, judgment, notice, and this docket. No entry reflects a tolling motion, an extension or reopening of the notice period, or a district-court stay of the unresolved claims.

Certification and status of unresolved claims

I certify that the preceding entries are a true and accurate account of the district docket in Civil Action No. SYN-NDWV-25-CV-0618 through March 20, 2026. The listed attachment descriptions identify the relationship between principal filings and their filed exhibits. This certificate does not characterize an attachment as admitted for every purpose and does not add material that was not before the district court.

As of the certification date, Count II of Asterglen's Complaint against Meridian remains unresolved. Copper's First Amended Counterclaim against Asterglen, seeking \$120,000, also remains unresolved. No final judgment encompassing those claims has been entered, neither claim has been voluntarily dismissed, and no order closes the action. The January 12 ruling and February 4 partial judgment concern Count I only.

The docket further reflects that the January 12 order identified factual overlap and a potential setoff involving the pending claims. The February 4 order granted Asterglen's Rule 54(b) motion and directed a separate judgment, but did not state the express determination requested in Asterglen's motion. The separate judgment did not add that determination. The March 3 notice was transmitted without a clerk's conclusion about appellate jurisdiction.

Certified on March 20, 2026. /s/ Clerk, United States District Court Northern District of West Virginia